

22STCV33422 22STCV33422

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Case Number: 22STCV33422 Hearing Date: June 30, 2026 Dept: 529

SAJDAH GOLDE V.

NETFLIX, INC.

PLAINTIFF'S MOTION TO VACATE OR ALTER
ARBITRATION AWARD

Date of Hearing: June 30, 2026 Trial Date: N/A

Department: 529 Case

No.:22STCV33422

Moving Party: Plaintiff Sajdah Golde

Responding Party: Netflix, Inc.

BACKGROUND

This is a wrongful termination action, which was compelled to arbitration on May 11, 2023. The arbitration resulted in an award in favor of defendant on June 2, 2025. On May 21, 2026, plaintiff filed the instant motion to vacate or alter the award.

[TENTATIVE] RULING:

The
motion to alter or vacate the arbitrator's decision is denied.

DISCUSSION

The grounds for judicial review of an arbitration award are limited by the California Arbitration Act (Code Civ. Proc., § 1280 et seq.) and the Federal Arbitration Act (9 U.S.C. § 10 et seq.), which authorize a court to vacate an award only if it was (1) procured by corruption, fraud, or undue means; (2) issued by a corrupt arbitrator; (3) affected by prejudicial misconduct on the part of the arbitrator; or (4) in excess of the arbitrator's powers. (Code Civ. Proc., § 1286.2, subd. (a); 9 U.S.C. § 10(a).) An award may be corrected for (1) evident miscalculation or mistake; (2) issuance in excess of the arbitrator's powers; or (3) imperfection in the form. (Code Civ. Proc., § 1286.6; 9 U.S.C. § 11.) In addition, Section 1286.2(a)(5) permits vacatur where a party's rights were "substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy."

"Generally, courts cannot review arbitration awards for errors of fact or law, even when those errors appear on the face of the award or cause substantial injustice to the parties." [Citation omitted.] "This is true even where . . . an arbitration agreement requires an arbitrator to rule on the basis of relevant law, rather than on principles of equity and justice. (Cable Connection Inc. v. Direct TV, Inc. (2008) 44 Cal.4th 1334, 1360) ... ['A provision requiring arbitrators to apply the law leaves open the possibility that they are empowered to apply it "wrongly as well as rightly."']; see City of Richmond v. Service Employees Intern. Union, Local 1021 (2010) 189 Cal.App.4th 663, 669, fn. 1, 118 Cal.Rptr.3d 315 ['The arbitration provision here, reciting generally that the arbitrator "shall ... make no decisions in violation of existing law' is a standard arbitration provision that does not provide for [judicial] review.'].)" (Richey v. AutoNation, Inc. (2015) 60 Cal. 4th 909, 916, 341 P.3d 438, 442.)

In her motion to set aside the arbitrators' award, which was filed on May 21, 2026, Golde contends that the matter went to final disposition by summary judgment before she had been able to obtain critical comparator information or to take the deposition of a witness who became ill.

Defendant takes the position that the motion is untimely, arguing that Golde's deadline to vacate the Final Award lapsed in September 2025. "A petition to vacate an award or to correct an award shall be served and filed not later than 100 days after the date of the service of a signed copy of the

award on the petitioner.” (Cal. Civ. Proc. Code § 1288; Law Finance Group, LLC v. Key (2023) 14 Cal. 5th 932, 948.) Here, the Final Award was issued and served on the Parties on June 2, 2025 through JAMS Access, JAMS’s electronic filing system. (Su Decl. ¶ 29.) From the email sent later that day by Golde to JAMS, it is apparent that Golde received the decision on that date. (See Su Decl, Exh. 17.) Accordingly, Golde’s deadline to move to vacate the Final Award was September 10, 2025. Therefore, because Golde’s deadline has passed, the Court must confirm the award. (See Darby v. Sisyphian, LLC (2023) 87 Cal. App. 5th 1100, 1114 (2023), disapproved on other grounds by L. Fin. Grp., LLC v. Key, 14 Cal. 5th 932 (2023); Cal. Civ. Proc. Code § 1286.)

Assuming arguendo that the motion is nonetheless timely, the court finds that plaintiff has not met the heavy burden of establishing a basis to vacate the award under Section 1286.

Plaintiff has not presented any evidence to indicate that the arbitrator was corrupt, acted in excess of their powers, or engaged in prejudicial misconduct. With respect to her claim that she was prevented from presenting critical evidence, plaintiff relies only on her own declaration. She does not explain what evidence witness Lang would have provided that could not have been provided by other witnesses or plaintiff herself. Golde’s bare boned declaration merely states that she sought discovery from Lang and other witnesses about comparator information, and when she learned that Lang was on a medical leave, she requested a continuance of deadlines or to exclude Lang’s testimony. Critically, she does not present any evidence as to what information Lang might have supplied or what showing she made before the arbitrator to justify the continuance. She therefore has not met her burden of establishing that the arbitrator denied her material evidence. (Royal Alliance Assoc. Inc.v. Liebhaber (2016) 2 Cal. App. 5th 1092, 1107; SWAB Financial LLC v. E*Trade Securities (2007) 150 Cal. App. 4th 1181, 1198-2000.)

Moreover, the defendant has presented substantial evidence to support its position that the arbitrator gave plaintiff a fair opportunity to engage in discovery and to oppose the motion for summary judgment; it was plaintiff who failed to marshal the evidence needed to oppose that motion. The court notes the following evidence presented by defendant: The Arbitrator gave each side five depositions and twice extended the deposition deadline, from January 15 to February 28 to March 7, 2025. (Su Decl. ¶¶ 8, 24, Exs. 5, 14.) Netflix produced all five witnesses Golde noticed and, at her request, lined them up for a single day on March 4, 2025. (Id. ¶¶ 14, 15, Ex. 8.) When Lang took medical leave, Netflix disclosed it at once and offered to produce her after she returned. (Id. ¶ 20, Ex. 8.)

Golde's response was to cancel all five depositions. (Id. ¶¶ 21, 25, Exs. 8, 15.) The Arbitrator did not refuse a postponement on "sufficient cause." In Order No. 10, he declined to continue every deadline in a case that had been pending since October 2023, after he had already extended the deposition cutoff twice at Golde's request. The

Arbitrator preserved Golde's opportunity to take testimony from Lang, stating that "[i]f

Ms. Lang has recovered by the time of the arbitration hearing, Ms. Golde may seek to call her as a witness." (Su Decl. ¶ 24, Ex. 14.) Golde cancelled four confirmed depositions of other Netflix witnesses because she was "interested in receiving all witness testimonies on the same date." (Id. ¶ 25, Ex. 15.) Golde did not object to the scheduling of the motion for summary judgment.

She

declined to oppose Netflix's request for leave to file the motion, and the Arbitrator granted that unopposed request in Order No. 6. Although she had the ability to file an opposition, she elected to file one without any declarations or exhibits and without a response to Netflix's separate statement. The court agrees that choosing to resolve the case on an authorized motion, after

briefing and a hearing, is a procedural call committed to the arbitrator and beyond review.

(Moncharsh v. Heily & Blasé (1992) 3 Cal. 4th 1,11; SWAB, 150 Cal. App. 4th at 1200.)

The remainder of her arguments., which challenge the reasoning of the arbitrator's award, are also unavailing.

Golde cannot challenge the sufficiency of the evidence and the Arbitrator's reasoning, as those issues are not subject to judicial review on the grounds raised by plaintiff. A court will not review the sufficiency of the evidence, the validity of the arbitrator's reasoning, or alleged errors of law. (Moncharsh, 3 Cal. 4th at 11.) "The arbitrator's decision should be the end, not the beginning, of the dispute." (Id. at 10; see also Pearson Dental Supplies v. Superior Court

(2010) 48 Cal.4th 665, 669 (emphasizing the limited nature of judicial

review of contractual

arbitration awards).